

[12 & 13 GEO. 5.] *Ministry of Health* [Ch. xcvi.]
Provisional Orders Confirmation (No. 9) Act, 1922.



CHAPTER xcvi.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Bradford Leek New Quay Runcorn Weymouth and Melcombe Regis and Whitstable. [4th August 1922.] A.D. 1922.

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 9) Act 1922 Short title.

A.D. 1922.

SCHEDULE.

CITY OF BRADFORD.

*Bradford
Order.*

*Provisional Order for altering certain Local Acts
and Confirming Acts.*

WHEREAS the City of Bradford (hereinafter referred to as "the City") is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas there are in force in the City the unrepealed provisions of certain Local Acts and Provisional Orders duly confirmed by Parliament (hereinafter referred to as "the Local Acts and Orders") including the Bradford Improvement Act 1873 the Bradford Corporation (Various Powers) Act 1887 the Bradford Corporation Waterworks Act 1890 the Bradford Corporation Waterworks Act 1892 the Bradford Corporation (Tramways Gas and Various Powers) Act 1900 the Bradford Corporation Act 1902 the Bradford Corporation Act 1910 and the Bradford Corporation Act 1913 (each of which Acts is hereinafter referred to as the Act of the year in which it was passed);

And whereas by Section 17 of the Act of 1873 the Corporation are required to pay compensation in certain events in cases where the line of streets is defined under the said Section and by Section 103 of the Act of 1913 the Corporation were authorised to borrow moneys for that purpose;

And whereas by Section 15 of the Act of 1910 it was provided that the trolley vehicles which the Corporation are by Part III. of that Act authorised to run should be of such form construction and dimensions as the Board of Trade might approve and that no such vehicle (including the weight of its load) should exceed a weight of five tons and by Section 17 of the said Act the Board of Trade were empowered on the application of the Corporation to make Provisional Orders authorising the use of trolley vehicles upon any route or routes within the City to which the application related and the said powers of the Board of Trade have since been transferred to the Minister of Transport;

And whereas by the Local Acts and Orders or certain of them the Corporation were authorised to borrow certain sums for purposes of or in connection with their markets fairs and

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slaughterhouses their water undertaking their tramway undertaking (including the use of trolley vehicles) and the conditioning house authorised by Part I. of the Act of 1887;

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Bradford
Order.

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Local Acts and Orders in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Acts and Orders shall be partially repealed altered or amended so that the following provisions shall take effect that is to say :—

1.—(1) For Section 15 of the Act of 1910 the following provision shall be substituted :—

As to trolley
vehicles.

“ 15. Trolley vehicles shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister of Transport Provided that nothing contained in this Section and no approval of the Minister of Transport thereunder shall be held to impose any obligation on or enlarge any obligation of any railway company or canal company to strengthen adapt alter or re-construct any bridge maintainable by them.”

(2) Section 17 of the Act of 1910 shall be altered and have effect as if the words “ within the City ” were omitted therefrom :

Provided that the Minister of Transport shall not under the powers of the said Section 17 as amended by this Article make a Provisional Order authorising the use of trolley vehicles upon any road outside the City except with the consent of the local authority of the district and of the road authority responsible for the maintenance and repair of the road but so that such consent shall not be unreasonably withheld and that any question whether or not any such consent has been unreasonably withheld shall be determined by the Minister of Transport.

2.—(1) Section 103 of the Act of 1913 shall be altered and have effect as if the words “ not exceeding in the whole fifty thousand pounds ” were omitted therefrom.

Borrowing
powers.

(2) The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of any of the Local Acts and Orders the Public Health Acts or any public

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A.D. 1922. general Act borrow at interest on the following securities and
for the following purposes the following sums that is to say :—

Bradford
Order.

On the security of the district fund and general district rate—

For the purpose of the purchase of land for the extension of the markets fairs and slaughterhouses the sum of Fifty-six thousand three hundred and sixty-one pounds and for the said purpose or any other purposes of the markets fairs and slaughterhouses (including any building for the accommodation of persons resorting to a market or fair) such further sum or sums as the Minister of Health may from time to time sanction.

On the security of the revenue of the water undertaking and the city fund and city rate with the sanction of the Minister of Health—

- (a) For the purposes of the water works numbered 5 and 13 in and authorised by Section 8 of the Act of 1892 any sum or sums not exceeding in the whole Five hundred and seventy thousand pounds;
- (b) For the purposes of the reservoir and works authorised by Part V. of the Act of 1913 any sum or sums not exceeding in the whole One million four hundred and fifty thousand pounds; and
- (c) For the general purposes of the water undertaking any sum or sums not exceeding in the whole One hundred thousand pounds.

On the security of the city fund and city rate—

For the purposes of the conditioning house the sum of Ten thousand pounds and such further sum or sums as the Minister of Health may from time to time sanction.

On the security of the tramway revenue and the city fund and city rate—

For the establishment and equipment of trolley vehicle routes and the provision of trolley vehicles and car-sheds and depôts and for tramway purposes such sum or sums as the Minister of Transport may from time to time sanction.

Period for
repayment
&c.

3.—(1) Any moneys borrowed under this Order with the sanction of the Minister of Health or the Minister of Transport shall be repaid within such period or periods not exceeding sixty years from the date of borrowing as such Minister may prescribe.

(2) The Corporation shall repay all other moneys borrowed under this Order for the purposes of the markets fairs and

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slaughterhouses within a period not exceeding sixty years from the date of borrowing and for the purposes of the conditioning house within a period not exceeding fifteen years from the date of borrowing.

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—
Bradford
Order.

(3) The period so prescribed in respect of any sum borrowed under this Order shall with reference to the repayment of such sum be the prescribed period for the purposes of the Local Loans Act 1875 and of Sections 51 and 52 of the Act of 1900 and Section 84 of the Act of 1902 as applied by this Order.

4. Subject as hereinafter provided the provisions of Sections 51 52 53 54 and 55 of the Act of 1900 Sections 82 84 and 86 of the Act of 1902 and subsections (2) (3) and (4) of Section 102 of the Act of 1913 shall apply as if those provisions were herein re-enacted and in terms made applicable to the moneys borrowed under this Order and otherwise to the purposes of this Order :

Application
of pro-
visions of
Acts of 1900
and 1902 to
borrowing
under and
purposes
of this
Order.

Provided that in the application of the provisions of Section 84 of the Act of 1902 as aforesaid those provisions shall have effect as if the words "three pounds ten shillings per centum" per annum or at such other rate as the Minister of Health "may from time to time approve" were inserted in paragraph (B) of subsection (1) of that Section instead of the words "three pounds per centum per annum" :

Provided also that in respect of moneys borrowed under this Order for or in connection with the reservoir and works authorised by the Act of 1913 the Corporation shall not be required to make any payments by way of instalments or to a sinking fund for such period as the Minister of Health may determine not being longer than that expiring at fifteen years from the date or respective dates of borrowing or at the time when the works in respect of which the moneys are borrowed are brought into use whichever is the earlier.

5.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries
and
expenses

(2) Where the Minister of Health causes any such inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Minister in relation to that inquiry (including such sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Corporation and the Minister may certify the amount of the

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A.D. 1922. costs so incurred and any sum so certified and directed by the
Minister to be paid by the Corporation shall be a debt due to the
Bradford Crown from the Corporation.
Order.

Short title. 6. This Order may be cited as the Bradford Order 1922.

Given under the Official Seal of the Minister of Health this
Eleventh day of May One thousand nine hundred and
twenty-two.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF LEEK.

Leek Order. *Provisional Order for altering the Leek Improvement
Act 1855.*

WHEREAS the Urban District Council of Leek (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Leek (hereinafter referred to as "the District") and the unrepealed provisions of the Leek Improvement Act 1855 (hereinafter referred to as "the Act") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order are in force in the District ;

And whereas in pursuance of the Act the Council carry on a market undertaking and by Sections 88 90 91 and 92 of the Act the Council are empowered to demand and take in respect of their markets fairs and slaughterhouses stallages rents payments and tolls not exceeding those specified in Schedule (A) to the Act annexed ;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter the Act in manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act shall be altered so that the following provisions shall take effect that is to say :—

Revision of
tolls for mar-
kets fairs and
slaughter-
houses.

1.—(a) Notwithstanding anything contained in the Act the Council may demand and receive in respect of their present or future markets fairs and slaughterhouses such stallages rents payments and tolls as the Council may from time to time appoint not exceeding such stallages rents payments and tolls

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as may from time to time be approved by the Minister of Health upon the application of the Council and any stallages rents payments and tolls so approved shall be substituted for the corresponding stallages rents payments and tolls specified in Schedule (A) to the Act annexed.

A.D. 1922.

Leek Order.

(b) Unless and until any stallages rents payments and tolls shall be approved by the Minister of Health in pursuance of this Order nothing in this Order contained shall affect the right of the Council to demand and receive the stallages rents payments and tolls which they are now authorised to take.

2. This Order may be cited as the Leek Order 1922.

Short title.

Given under the Official Seal of the Minister of Health
this Tenth day of May One thousand nine hundred
and twenty-two.

(L.S.)

F. L. TURNER

Assistant Secretary Ministry of Health.

URBAN DISTRICT OF NEW QUAY.

*Provisional Order to enable the Urban District Council
of New Quay to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

*New Quay
Order.*

WHEREAS the Urban District Council of New Quay (hereinafter referred to as "the Council") require to purchase and take the land described in the schedule hereto for the purposes of a cemetery :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say :—

1. The Council shall be empowered for the purposes aforesaid to put in force with reference to the land described in the schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Compulsory
powers of
purchase.

2. This Order may be cited as the New Quay Order 1922.

Short title.

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The SCHEDULE above referred to.

*New Quay.
Order.*

Parish of LLANILWCHAIARN in the County of CARDIGAN.

Description of Land.	Owner or reputed Owner.	Lessees or reputed Lessees.	Occupier.
Field or piece of land being part of Vrondolay Farm containing 3 acres and 2 roods or thereabouts situate near New Quay in the Parish of Llanllwchaiarn in the County of Cardigan and being the field numbered 70 on Sheet 241 of the Cardiganshire Ordnance Survey of 1905 on the scale of 25·344 inches to a statute mile.	John Thomas of Vrondolay New Quay.	Nil	John Davies of Neuadd Farm New Quay.

Given under the Official Seal of the Minister of Health
this Eleventh day of May One thousand nine hundred
and twenty-two.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF RUNCORN.

*Runcorn
Order.*

*Provisional Order for altering the Runcorn Weston and
Halton Waterworks Act 1865 and the Runcorn
Commissioners Act 1893.*

WHEREAS the Urban District Council of Runcorn (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Runcorn (hereinafter referred to as "the District") and the unrepealed provisions of the Runcorn Weston and Halton Waterworks Act 1865 (hereinafter referred to as "the Act of 1865") and the Runcorn Commissioners Act 1893 (hereinafter referred to as "the Act of 1893") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject matter of this Order are in force in the District;

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And whereas under the Act of 1865 and the Act of 1893 the Council carry on a water undertaking and supply water within certain limits (hereinafter referred to as "the limits of supply") which comprise the District and certain other areas ;

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*Runcorn
Order.*

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1865 and the Act of 1893 in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the said Acts shall be altered so that the following provisions shall take effect that is to say :—

1. The Council may subject to such conditions as may be prescribed and in accordance with such plans and sections as may be approved by the Minister of Health construct and maintain an additional reservoir and other works for the purposes of their water undertaking on certain lands belonging to the Council adjoining the site of the existing reservoir of the Council in the District.

Power to
construct
additional
works.

2. The works authorised by this Order shall for all purposes be deemed part of the water undertaking of the Council and the provisions of the Acts of 1865 and 1893 shall so far as the same are applicable and subject to the provisions of this Order extend and apply to such works.

Works to
form part of
undertaking.

3. Subject to the provisions of this Order the Acts of 1865 and 1893 shall have effect as if such of the provisions of the Public Health Act 1875 and such of the enactments thereby applied or therein referred to as relate to water supply contracts purchase of lands and arbitration and as include Sections 285 308 327 to 329 and 332 and any other sections of the Public Health Act 1875 which are connected with incidental to or consequent upon the provisions herein-before mentioned were with the necessary modifications and in particular with the substitution of references to the water limits of the Council for references to the district of a local authority re-enacted in the Acts of 1865 and 1893 and in terms made applicable to the purposes of the water undertaking of the Council and of any new waterworks to be undertaken by the Council and as if the said purposes comprised the prevention of the pollution or contamination of the water supply or of the sources of the water supply of the Council and the protection of the water supply or the sources of the water supply of the Council from nuisance or injury :

Application
of Public
Health Act
1875 to
water under-
taking.

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*Runcorn
Order.*

Provided that the Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament or Provisional Order confirmed by Parliament.

Power to
sell meters.

4. The Council may sell water meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Exemption
of fittings
from distress
&c.

5. Any cisterns pipes valves ferrules cocks baths soil-pans and watercloset apparatus receptacles fittings and appliances (in this Article referred to as "fittings") let for hire by the Council under the provisions of Section 25 of the Act of 1893 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Power to
break up
streets &c.

6.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 or under any other Act relating to the Council to maintain any pipe or apparatus used for the supply of water from the works of the Council the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of Sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier but subject to any obligations of such owner or occupier in relation to the execution of such works and any expenses incurred by the Council in so doing shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Powers of
Council
to repair
communica-
tion pipes.

7. If it should appear to the Council that by reason of injury to or defect in any communication pipe which the Council are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Council to execute such repairs as they may think necessary or expedient

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in the circumstances of the case without being requested so to do and the expense incurred by the Council in executing such repairs shall be recoverable by the Council from the owner:

A.D. 1922.

—
*Runcorn
Order.*

Provided that except in case of emergency the Council shall not under the powers of this Article enter into any house or private premises unless they shall have given to the owner of such house or premises not less than twenty-four hours previous notice of their intention so to enter.

8. Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stop cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop up break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Council shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Detection of
waste.

9. When several houses or parts of houses in the occupation of several persons are supplied with water of the Council by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Council.

Maintenance
of common
pipe.

10. This Order may be cited as the Runcorn Order 1922.

Short title.

Given under the Official Seal of the Minister of Health this
Tenth day of May One thousand nine hundred and
twenty-two.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

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BOROUGH OF WEYMOUTH AND
MELCOMBE REGIS.

*Weymouth
and Melcombe
Regis (No. 2)
Order.*

*Provisional Order for altering or amending the
Weymouth and Melcombe Regis Corporation Act 1887.*

WHEREAS the Borough of Weymouth and Melcombe Regis (hereinafter referred to as "the Borough") is an urban district of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and the unrepealed provisions of the Weymouth and Melcombe Regis Corporation Act 1887 (hereinafter referred to as "the Act of 1887") as altered by the Weymouth and Melcombe Regis Order 1908 are in force in the Borough;

And whereas by Part V. of the Act of 1887 certain powers were conferred on the Corporation in relation to parks and places of public recreation belonging to or managed by the Corporation;

And whereas by Part X. of the Act of 1887 provision was made as to the borrowing by the Corporation of certain sums for the purposes of the Act and as to the repayment of any sums so borrowed;

And whereas the Corporation propose to acquire by agreement for the purpose of golf and other games the lands situate in the Parish of Radipole in the County of Dorset which are described in the Schedule to this Order and are known as the Westham Golf Links together with all buildings and erections thereon and the whole of the removable assets thereon or in any of the said buildings or erections of the lessees in occupation of the lands;

And whereas it is desirable that the Corporation should be authorised to acquire additional lands for the purposes of golf and other games;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1887 as altered as aforesaid in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other power in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act of 1887 as altered as aforesaid shall be further altered so that the following provisions shall take effect that is to say:—

Purchase of
lands &c.
by the
Corporation.

1. The Corporation shall be empowered—

- (1) To purchase by agreement (but not otherwise) the interest of the lessees in the lands described in the

Schedule to this Order (in this Order referred to as "the golf course") and in all buildings and erections thereon and the interests of all other persons in the said lands buildings and erections;

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and Melcombe
Regis (No. 2)
Order.

(2) To purchase by agreement (but not otherwise) or to take on lease other lands (in this Order referred to as "the additional lands") for the purposes of golf and other games;

(3) To purchase the whole of the removable assets on the lands described in the Schedule to this Order or in any of the buildings or erections thereon of the lessees in occupation of the lands.

2.—(1) After the completion of the purchase by the Corporation of the golf course the Corporation may—

Use of lands
for golf and
other games.

(a) close the same or any part thereof against the public and may demand and take or permit to be demanded and taken such reasonable sums as the Corporation may decide for the exclusive occupation of the same or any portion thereof or for the admission of persons vehicles goods and things thereto and may exclude therefrom all persons vehicles goods and things unless payment be made of the reasonable sum demanded;

(b) hold set apart lay out maintain alter and improve the golf course for the purposes of golf and other games and provide any further buildings conveniences or necessary apparatus for such purposes;

(c) make charges for the use of the golf course or of any part thereof and of any buildings conveniences or apparatus provided in connexion therewith;

(d) permit the use by any club or other body or person of the golf course or of any part thereof and of the buildings conveniences or apparatus aforesaid subject to such charges and conditions as the Corporation may think fit;

(e) let on lease or otherwise to any club company body or persons any portion of the golf course and of the buildings or conveniences for such consideration and upon such terms and conditions as the Corporation may think fit;

(f) make and enforce byelaws for regulating the use of the golf course and the conduct of persons using the same or resorting thereto for the purposes of golf or other games; and

(g) employ officers and servants in connexion with and for the purposes of the powers aforesaid.

(2) Subdivision (1) of this Article shall extend to the additional lands acquired by the Corporation under the powers conferred by this Order.

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Order.*

(3) Sections 72 and 73 of the Act of 1887 (which relate to byelaws made by the Corporation under that Act) shall extend to any byelaws made by the Corporation in pursuance of this Article as if such byelaws were made under the powers of Part V. of the Act of 1887.

Appropriation of land.

3. The Corporation may appropriate the golf course and the additional lands or any portion of such course or lands for any purpose within the statutory powers of the Corporation which may be approved by the Minister of Health.

Borrowing powers.

4. The purchase of the golf course (including the buildings and erections thereon) and of the additional lands the construction of works and the provision of buildings conveniences and apparatus under the powers conferred upon the Corporation by this Order shall be deemed to be purposes of the Act of 1887 for which the Corporation may on the security of the district fund and general district rate of the Borough borrow money under Section 93 of that Act :

Provided that the borrowing powers hereby conferred shall not be exercised without the consent of the Minister of Health and that for the purposes of the application of Section 95 of the Act of 1887 to any moneys so borrowed the prescribed period for repayment shall be such period not exceeding sixty years as the Minister of Health may sanction.

Application of revenue of golf undertaking.

5.—(1) The Corporation shall keep the accounts in respect of the golf course and the additional lands (hereinafter referred to as "the golf undertaking") separate from their other accounts distinguishing therein capital from revenue and shall apply the moneys from time to time received by them by way of revenue from the golf undertaking in each year to the purposes hereinafter mentioned in the order specified :—

- (a) In payment of the working and establishment expenses of the golf undertaking and the cost of maintenance of the same ;
- (b) In payment of the interest on moneys borrowed or re-borrowed for the purposes of the golf undertaking ;
- (c) In providing for the discharge of moneys borrowed or re-borrowed for the purposes of the golf undertaking ;
- (d) In altering and improving any works in connexion with and for the purposes of the golf undertaking.

(2) The Corporation shall carry to the district fund of the Borough so much of any balance remaining in any financial year of the moneys received by way of revenue from the golf undertaking as may in their opinion not be required for the purposes mentioned in the preceding subdivision of this Article.

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(3) Any deficiency in the revenue of the golf undertaking shall forthwith be made good by the Corporation out of the district fund and general district rate of the Borough.

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and Melcombe
Regis (No. 2)
Order.

(4) The provisions of this Article shall cease to apply to any part of the golf course and of the additional lands appropriated with the approval of the Minister of Health under the Article of this Order the marginal note whereof is "Appropriation of land."

6. This Order may be cited as the Weymouth and Melcombe Regis (No. 2) Order 1922.

Short title.

The SCHEDULE.

All those lands containing together 99·339 acres or thereabouts situate in the Parish of Radipole in the County of Dorset the names of which and the numbers and areas as respectively shown on the Ordnance Map are as follows :—

Name.	No. on Ordnance Map.	Acreage.
Big Cranborne - - - -	255	16·537
Little Cranborne - - - -	256	11·887
Withy Bed - - - - -	257	3·641
Broom Hill - - - - -	258	14·195
Withy Bed - - - - -	259	·693
Middle Hill - - - - -	260	24·768
Withy Bed - - - - -	261	·691
Pond Close - - - - -	262	26·927
		99·339

Given under the Official Seal of the Minister of Health
this Eleventh day of May One thousand nine hundred
and twenty-two.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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A.D. 1922.

URBAN DISTRICT OF WHITSTABLE.

*Whitstable
Order.*

*Provisional Order for altering the Whitstable Water and
Improvement Act 1902.*

WHEREAS the Urban District Council of Whitstable (hereinafter referred to as "the Council") are the local authority for the purposes of the Public Health Act 1875 for the Urban District of Whitstable (hereinafter referred to as "the District") and the provisions of the Whitstable Water and Improvement Act 1902 (hereinafter referred to as "the Local Act") are in force in the District;

And whereas by Section 6 of the Local Act the Council were empowered within two years after the passing of that Act to require the Whitstable Water Company Limited to sell and transfer to them the water undertaking of the Company (hereinafter referred to as "the water undertaking");

And whereas by Sections 21 22 26 and 27 of the Local Act provision was made with regard to the rates sums and prices to be charged for a supply of water for domestic purposes in respect of water-closets and fixed baths and for a supply of water by measure;

And whereas by Section 136 of the Local Act the period of forty-five years from the date of borrowing was prescribed as the period within which the Council should pay off moneys borrowed for the purpose of the purchase of the water undertaking and of defraying the costs charges and expenses incident to such purchase and by Section 138 of the Local Act a rate not exceeding three per centum per annum was fixed as the rate of accumulation on which the payments to any sinking fund for the discharge of moneys borrowed under the authority of the Act were to be based;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Local Act in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other power in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect namely:—

Purchase of
the water
undertaking.

1.—(1) Notwithstanding anything in Section 6 of the Local Act the Council may within two years after the date of the Act of Parliament confirming this Order purchase by

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agreement and the Whitstable Water Company Limited may sell the water undertaking.

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(2) Subject to the provisions of this Order the provisions of the Local Act shall apply to the purchase by the Council and the sale by the Water Company of the water undertaking under the powers conferred by this Order and upon the transfer to the Council of the water undertaking the Council shall hold the undertaking in all respects as if the purchase had been effected under the authority of the Local Act and the relevant provisions of the Local Act (as amended by this Order) shall apply to the Council and to the water undertaking accordingly.

2.—(1) The Minister of Health on the application of the Council or of twenty consumers may from time to time fix by Order the rates for a supply of water for domestic purposes the additional sums chargeable in respect of every water-closet beyond the first and in respect of every fixed bath capable of containing not more than fifty gallons and the rates or prices for the supply of water by measure within the District.

Power of
Minister of
Health to fix
rates &c. for
a supply of
water.

(2) The Council shall as soon as practicable after an Order is made in pursuance of subdivision (1) of this Article cause the Order to be published in two successive weeks in one or more local newspapers circulating in the District and the Order shall come into operation on and after the quarter day next following the date of the last of the said publications.

3. On and after the date on which any Order made in pursuance of subdivision (1) of Article 2 of this Order comes into operation Sections 21 22 26 and 27 of the Local Act shall have effect as if—

Alteration of
Local Act
on operation
of new water
rates and
charges.

- (a) for the rates sums or prices specified in those Sections there were substituted the corresponding rates sums or prices fixed by the Order made as aforesaid ; and
- (b) such other modifications were made in the said Sections as are necessary to render the Sections applicable to any premises rates sums or prices specified in the said Order.

4.—(1) Section 136 of the Local Act shall be altered and have effect as if “thirty years” were substituted for “forty-five years.”

Repayment
of loans and
accumulation
of sinking
fund.

(2) Section 138 of the local Act shall be altered by the insertion of the words “or at such other rate as the Minister of Health may from time to time approve” in that Section immediately after the words “at a rate not exceeding three per centum per annum.”

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Inquiries and
expenses.

5.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary with reference to the purposes of the Local Act and this Order and such inspectors shall for the purposes of any inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) Where the Minister causes any such inquiry as aforesaid to be held the costs incurred by the Minister in relation to that inquiry (including such sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

(3) Section 168 of the Local Act is hereby repealed.

Short title.

6. This Order may be cited as the Whitstable Order 1922.

Given under the Official Seal of the Minister of Health
this Eleventh day of May One thousand nine hundred
and twenty-two.

(L.S.)

H. W. S. FRANCOIS
Assistant Secretary Ministry of Health.

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